

Anuj Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 November 2025 · Writ-C No. 41549 of 2025 · **Writ disposed of; petitioner left to statutory remedy under the Supply Code, 2005.**

HEADNOTE

Theft-assessment writ, raising a quantification dispute and an alleged excess deposit, not entertained on merits. Fact disputes do not warrant writ interference; petitioner left to the statutory remedy under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner, Anuj Kumar, was assessed arising from an allegation of theft of electricity. He approached the High Court of Judicature at Allahabad in Writ-C No. 41549 of 2025, disputing the quantification of the assessed electricity dues and claiming that an excess deposit had been made. Counsel for the petitioner, for respondent no. 2, for respondent nos. 4, 5 and 6, and the Standing Counsel for the State were heard. On an oral prayer, the petitioner was permitted to correct the description of respondent nos. 2 and 3.

HOLDING-UNITS

INTERPLAY · UP-2005

writ vs statutory remedy (theft assessment)

HOLDING

Fact disputes on quantification of a theft-of-electricity assessment and an alleged excess deposit do not warrant interference in writ jurisdiction. The petition is disposed of, leaving the petitioner to avail the statutory remedy under the U.P. Electricity Supply Code, 2005, in accordance with law. ¶ 3-4

PRINCIPLE TAGS

relegate-to-statutory-remedy Theft-assessment writ, raising a quantification dispute and an alleged excess deposit, not entertained on merits. Fact disputes do not warrant writ interference; petitioner left to the statutory remedy under the U.P. Electricity Supply Code, 2005. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — QUANTIFICATION OF THEFT-ASSESSMENT DUES AND ALLEGED EXCESS DEPOSIT
Left to the statutory remedy under the Supply Code, 2005. ¶ 3-4